Bobcat Trail Homeowners Association, Inc.
Board of Directors Meeting Minutes for 10/25/17

A Board of Directors meeting was held on Wednesday, October 25, 2017, at 3:30 pm, in the Bobcat Trail Community Center, 1352 Bobcat Trail, North Port, FL 34288

1. **CALL TO ORDER:** President Wagner called the meeting to order at 3:30 pm

2. **STATEMENT OF QUORUM:** Directors Wagner, Daughdrill, Mastropietro and Tantum were personally present. Directors Alden and Swalec were present via teleconference. Sandy L. Ellis, CMCA and licensed Community Association Manager was present on behalf of AMI.

3. **PROOF OF NOTICE:** Dir. Daughdrill confirmed that proper notice was provided no less than 48 hours in advance, in accordance with Florida Statute 720 and the Association's Governing Documents.

4. **READING / APPROVAL OF MINUTES** from September 27, 2017 and 3/22/17 Clarification. Director Swalec made a motion to accept the minutes with changes as stated. Director Daughdrill seconded the motion. Upon BOD vote, ***the motion passed unanimously to approve the minutes of 9/ 27/17 and the one sentence clarification in the minutes of 3/22/17.***

5. **REPORTS:**
   A. Financial Report – Was given by Treasurer- Alden We are still over budget in legal expenses, but still in good shape and in line with over-all budget.
   B. AMI Management Report was read and a hard copy issued to each board member by Sandy L. Ellis, CMCA
   C. Officers Reports:
      - President Wagner thanked the 14 plus attendees and the Board for coming to the meeting. President Wagner stated that he attended the HOA President's meeting at the City of North Port last Thursday, where it was announced that the Atlanta Braves are breaking ground in North Port and will be playing in Spring of 2019 in North Port. City Manager Pete Lear said that the 2018 budget includes monies for the Toledo Blade Landscaping Project.
      - Secretary Daughdrill had nothing to Report.
      - Treasurer Alden had already reported on the financials, nothing more to add.
   D. Committee Reports:
      1. ACC- Dave Daughdrill was absent due to illness. ACC meeting was held and all requests were approved without controversy.
      2. TES- Marge Alden stated that Woodburn Roof needs cleaning the remediation date was extended to November 13, 2017. First notice of Violation was 8/30/17. Therefore, by the committee's policy they are ineligible for an extension. They were sent a letter yesterday 10/24/17.
      3. Hearing Panel- Rita Castle-Smith stated the Hearing Panel agreed with the BOD actions of the 9/27/17 meeting.

6. UNFINISHED BUSINESS:

A. **"Vicious Dog":** President Wagner noted that a second deposition was not done. The Bobcat Trail Lawyer will set a second date for deposition. This item will be held under "Unfinished Business".

B. Overnight Parking, Fining, Towing (Addendum X - CDD & HOA):

- Fred Jones has info to meet with the CDD and discuss overnight parking and towing issues. Director Wagner reported that the CDD does have towing rights. There is a signed agreement to cooperate with the CDD. This will be an Addendum. We will be working as a team to get cars off of the street that are parking overnight. Restricting back gate access is a possibility if it meets CDD and HOA Policies.
- The CDD can deactivate the "entry stickers" for unwanted parking, if they prefer not to tow. The CDD will send parking notices from the gatehouse to Richard Wagner and David Daughdrill.

C. HOA Continuity Planning:

- Director Alden's Job Description/Responsibilities list is complete. There is a need to add another description-Dave Daughdrill' s approvals and inspections and his committee duties.

D. Hurricane Irma & Maria / Unapproved Shutters: Before and after Hurricane Irma, unapproved shutters were used. Dave Daughdrill and Director Swalec are revisiting this policy. 1-unapproved shutters 2 days before, 2 days after named weather event 2-Approved may be used in a different manner (clear) flexibility while absent to secure your home. Eminence of the storm is cleared by the Board. Review of this policy and NOAA with regard to discussion of responsibility. The policy needs reviewing. It has aged and there may be some oddities in the wording. More to come on that.

E. Bingo at Bobcat: President Wagner wrote to the Assn. Attorney. to verify if it would be legal to have Bingo at Bobcat. Our General Liability and D & O insurance needs to be reviewed by our attorney. This activity must be sponsored by the HOA to occur. It cannot be a private event in the clubhouse.

F. Any Other Unfinished Business:

7. NEW BUSINESS:

A. Adoption of the 2018 Budget:

- President Wagner reported that the surplus had allowed the association from increasing annual assessments. He listed the year and the amount of assessments as follows:
  2006: $90
  2007: $130
  2008: $130
  2009: $160
  2010: $240
  2011: $131
  2012: $131
  2013-2017: $50 per year.
  There have not been increases in maintenance fees in 5 years. Due to dwindling surplus, assessments were from $50 per month to $80 per month. The Villas will be $24 per month.

- Director Daughdrill made a **motion** to adopt the budget as presented. Director Mastropietro seconded the motion. ***The motion passed unanimously and the 2018 Budget was Adopted.***

B. Any Other New Business:

8. POTENTIAL FINES:

A. 1762 Queen Palm Way—Palm Tree Trimming: **Complied- No Fine**
B. 2998 Royal Palm Dr.—Dirty Roof: **Complied -No Fine**
Motion by Director Wagner for no fine on A & B as they complied. The motion was Seconded by Director Swalec. ***The motion passed unanimously***
C. 2864 Phoenix Palm Terr—Dirty Roof **Not Complied-Fine**
D. 1664 Palmetto Palm Way—Storm Shutters ***Complied on or about 10/18/17, fine $100 plus $10 times 10 days= $200 fine.** ***Motion*** by Director Mastropietro for fine, they failed to comply per policy. The motion was Seconded by Director Tantum. ***The motion passed unanimously.***
E. 2730 Phoenix Palm Terr—Front Yard Light Pole Stained **Not Complied-Fine**
F. 3346 Bailey Palm Ct—Palm Tree Trimming **Not Complied-Fine**
G. 1627 Palmetto Palm Way—Dirty Roof **Not Complied-Fine**

A ***MOTION*** WAS MADE BY DIRECTOR WAGNER AND SECONDED BY DIRECTOR MASTROPIETRO TO FINE FOUR HOMEOWNERS $100, PLUS $10 PER DAY UNTIL COMPLIANCE IS MET ON ITEMS C, E, F, AND G AS LISTED. ***The motion passed unanimously.***

H. 1736 Palmetto Palm—Dirty Roof **Complied-No fine**
Motion by Director Wagner for no fine on H as they complied. The motion was Seconded by Director Tantum. ***The motion passed unanimously***
I. 1762 Queen Palm Way—Dirty Roof**- This item tabled**- Roof is damaged & needs to be replaced owner working with TES.
J. Any Other New Business: None

9. OWNERS COMMENTS:

- Director Alden asked JoDean Eddins if the S.E.T. could sponsor Bingo and the start up costs. The answer is NO, the HOA must legally sponsor. However, members can run the games.
- Director Daughdrill said that the ACC does not interfere with the Villas. Rich stated that the President of the Villas writes the fine and they act on it. There is a 35-day limit to comply.

10. NEXT MEETING DATE: November 15, 2017, at 3:30 pm

11. ADJOURNMENT*: Motion* to adjourn made by Director Mastropietro, seconded by Director Daughdrill Upon BOD vote, ***Motion passed unanimously***- meeting adjourned.

Respectfully submitted,
Sandy L. Ellis, CMCA
Licensed Community Manager
Advanced Management, Inc. (AMI)

Attachments:
Management Report dated 10/25/17
Minutes 9/27/17 and Clarified one sentence in 3/22/17 Minutes
Bingo at Bobcat Presentation Packet
2018 Newly Approved Budget
Delinquency Report
Outstanding Violations Report
Sign In Sheet for 10/25/2017